Plaintiff's Claim - Schedule A

Summary

1. I paid $1,196 USD to the University of Toronto on January 28, 2025 for a 150-hour TEFL certification program. The University accepted my payment five days after its contracted provider entered bankruptcy proceedings, failed to disclose this insolvency, terminated the program mid-completion on June 6, 2025, and has refused to provide a refund despite not delivering the purchased service.

Claim for damages

2. Plaintiff claims the following:

- Damages: $1196
- Prejudgment and post-judgment interest as set out in the *Courts of Justice Act.*

Reasons for claim and details

3. What happened?
I paid $1,196.00 USD to the University of Toronto on January 28, 2025, for a 150-hour TEFL certification program with specializations in Business English and Test Preparation. The University accepted payment despite having institutional knowledge that the contracted provider, Pluribus Technologies Corp., had entered bankruptcy proceedings on January 23, 2025 (5 days earlier) and having received Notice to Creditors in December 2024. The course was taken offline on June 6, 2025, eliminating all student access. The University refused refund requests and offered only materially inferior alternatives: a Legacy Program with an impossible compressed timeline for my documented traumatic brain injury, or a New Program reduced to 125 hours with no specializations. Neither option constitutes the contracted service. The University has deflected responsibility since the course shutdown in June despite documented evidence of institutional knowledge, breach of contract, and failure to accommodate disability.

Where?
Online program administered by University of Toronto, Ontario Institute for Studies in Education (OISE), Continuing and Professional Learning, Toronto, Ontario

When?

Payment accepted: January 28, 2025
Service interrupted: June 6, 2025
Refund requests: September 2025 - December 2025
Claim date: 12/14/2025

Parties

4. Student-institution consumer relationship. I enrolled as a paying student in the University of Toronto's OISE TEFL certification program on January 28, 2025, and paid $1,196 USD in tuition directly to the University. The University accepted my payment and entered into a contract to provide a 150-hour TEFL certification program

with Business English and Test Preparation specializations. I have no other relationship with the University beyond this student enrollment and tuition payment.

Responsibility of defendant

5. The University of Toronto is directly responsible for my loss because:

1. ACCEPTED PAYMENT WITH KNOWLEDGE OF INSOLVENCY: The University accepted my $1,196 USD payment on January 28, 2025, despite having institutional knowledge that its delivery partner (Pluribus Technologies Corp.) had entered bankruptcy proceedings five days earlier (January 23, 2025). University staff confirmed in writing (September 23, 2025) that "a general University of Toronto Accounts Receivable contact received the Notice to Creditors in December 2024", more than one month before accepting my payment.

2. FAILED TO DISCLOSE MATERIAL INFORMATION: The University did not disclose the provider's insolvency or program instability when accepting payment, depriving me of the ability to make an informed decision.

3. TERMINATED SERVICE WITHOUT COMPLETION: The University took the program offline on June 6, 2025, eliminating all student access mid-program and failing to deliver the 150-hour certification with specializations I paid for.

4. ASSUMED OWNERSHIP AND CONTROL: TeachAway confirmed in writing (September 8, 2025) that "OISE now solely owns and operates the OISE TEFL course" and that the University has "access to... course records, payments, and progress." The University controls student payment records and assumed program ownership, establishing direct responsibility.

5. OFFERED INADEQUATE ALTERNATIVES: The University's "solutions" constitute material breach: (a) Legacy Program with October 31, 2025 deadline impossible for my documented traumatic brain injury, and (b) New Program reduced to 125 hours with eliminated specializations, neither matching the contracted service. (c) Legacy Program on entirely different platform (Quercus vs. original TeachAway system). CRITICAL IMPACT: The June-October shutdown caused me to lose all momentum and forget my prior progress due to my documented traumatic brain injury (TBI from October 5, 2024 car accident). Starting over on a new platform after months of interruption was neurologically impossible with TBI-related memory and processing difficulties. The University failed to accommodate my disability despite documentation, making their "extension" meaningless when I had to restart from zero with no ability to recover lost learning.

6. REFUSED REFUND DESPITE BREACH: The University has refused all refund requests since September 2025, falsely directing students to the bankrupt provider despite having assumed program control and possession of payment records.

CAUSATION: The University's acceptance of payment with knowledge of insolvency, failure to disclose, program termination, and refusal to refund directly caused my financial loss of $1,196 USD. I relied on the University's reputation and paid for a service they failed to deliver.

Additional information

7. ADDITIONAL HARM - REPUTATIONAL DAMAGE AND LOSS OF CREDENTIAL VALUE:

Beyond the financial loss, the University's handling of this matter has destroyed my trust in the institution and devalued the credential itself. I originally chose this program specifically because of the University of Toronto's reputation as Canada's premier institution. I believed a U of T credential would carry significant professional weight.

However, the University's actions, accepting payment while knowing the provider was insolvent, terminating the program mid-completion, deflecting responsibility to a bankrupt company, and refusing refunds despite documented disability, have fundamentally damaged my perception of the institution's integrity.

Even if I could complete the Legacy Program (which is neurologically impossible due to my TBI), I would no longer feel comfortable listing a University of Toronto credential on my CV or resume. The institutional breach of trust means the credential now represents institutional failure rather than educational excellence. I cannot in good conscience represent myself as affiliated with an institution that treated students this way.

This loss of credential value is additional harm beyond the $1,196 financial loss. I paid premium tuition specifically for the University of Toronto brand, and that brand value has been destroyed by the University's own misconduct.

The University cannot both refuse to deliver the contracted service AND retain my payment. A refund is the only remedy that makes me whole.

FRAUDULENT MISDIRECTION: The University's official FAQ directed students to contact "info@pluribustechnologies.com" for refunds, claiming "OISE CPL did not collect tuition payments and is therefore not in a position to process refunds." However, the bankruptcy trustee (Harris and Partners Inc.) confirmed Pluribus entered bankruptcy July 10, 2025 with zero funds available for creditor refunds. The University was directing students to a bankrupt entity with no ability to pay while simultaneously claiming (via TeachAway, September 8, 2025) that "OISE now solely owns and operates the OISE TEFL course" including "payments and progress" records. This constitutes knowingly false misdirection, the University had the payment records but directed students to an entity it knew was insolvent.

EXHAUSTION OF ADMINISTRATIVE REMEDIES: Before filing this claim, I exhausted all available remedies: (1) Consumer Protection Ontario (Case File: CAS-118208-X0W3T) - declined jurisdiction; (2) Canadian Anti-Fraud Centre (Complaint #2025-81555) - filed September 16, 2025; (3) Bankruptcy trustee - confirmed no funds available; (4) Direct appeals to Dean Walker, Michael Cassidy (Associate Director), and President Woodin - all denied. Small claims court is my final recourse.

UNIVERSITY KNOWLEDGE TIMELINE (proving they knew before accepting payment):
- December 2024: U of T Accounts Receivable receives Notice to Creditors
- January 23, 2025: Pluribus publicly announces bankruptcy (5 days before my payment)
- January 28, 2025: University accepts my $1,196 USD with no disclosure
- March 2025: OISE CPL staff claim they "first learned" (internal communication failure)

- June 6, 2025: Program taken offline
- September 23, 2025: OISE staff admit Accounts Receivable knew in December 2024

The University's internal communication failure does not excuse accepting payment while having institutional knowledge of insolvency.

DIRECT CONTRADICTION OF UNIVERSITY'S REFUND POSITION: TeachAway wrote (September 8, 2025): "OISE now solely owns and operates the OISE TEFL course... Teach Away no longer has access to or legal authority over the OISE TEFL program, including your login, course records, payments, and progress." This directly contradicts the University's FAQ claim that it "did not collect tuition payments." The University cannot simultaneously claim it doesn't have payment records while its former partner confirms in writing that the University has exclusive control of those records.
PATTERN OF HARM: This is not an isolated incident. The University accepted payments from multiple students during the January-June 2025 period while the provider was insolvent, then deflected all to the bankrupt entity. This suggests institutional policy rather than individual error. ACTIVE MARKETING DURING KNOWN INSOLVENCY:

PREDATORY MARKETING: The University was actively promoting the TEFL program with a New Year's discount in January 2025, incentivizing purchases during the exact period when it had institutional knowledge of the provider's insolvency (Notice to Creditors received December 2024; bankruptcy announced January 23, 2025). I was specifically enticed to purchase on January 28, 2025 based on this promotional discount pricing.

This demonstrates the University was not merely passively accepting payments, it was actively soliciting new enrollments through promotional campaigns while possessing knowledge that the program was unstable. Running a discount promotion to drive enrollment while knowing the provider was bankrupt suggests deliberate exploitation of students' trust in the University of Toronto brand.

The combination of (1) promotional discount marketing, (2) institutional knowledge of insolvency, (3) failure to disclose, and (4) subsequent refund refusal constitutes a pattern of institutional misconduct affecting multiple students, not an isolated administrative error.

Particulars of claim for damages
8. Claim for damages is comprised of the following: CALCULATION OF AMOUNT CLAIMED:

Date of Payment: January 28, 2025
Amount Paid: $1,196.00 USD
Program: 150-hour TEFL certification with specializations

Service Not Delivered: Program terminated June 6, 2025 (mid-completion)
Alternative Offered: Materially different program (125 hours, no specializations)

Amount Sought: Full refund of $1,196.00 USD

Supporting Evidence: Payment receipt (Exhibit A), bankruptcy filings
(Exhibit B), correspondence (Exhibit C)

Supporting documents

9. There are correspondence, screenshots, agreements, financial statements, evidence to support the claim:

• Complete Evidence Dossier including: payment receipt (Jan 28, 2025), bankruptcy announcement (Jan 23, 2025), email correspondence with University staff (Aug-Dec 2025), TeachAway confirmation of University control (Sept 8, 2025), OISE staff admission of prior knowledge (Sept 23, 2025), bankruptcy trustee confirmation, University FAQ screenshots, Consumer Protection Ontario filing (Case CAS-118208-X0W3T), and Canadian Anti-Fraud Centre complaint receipt (#2025-81555).

- This evidence is attached.